

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel DiRocco	Team: Team # 6	CCRB Case #: 201311189	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 11/23/2013 5:30 PM	Location of Incident: Opposite of 196 Emerson Avenue	18 Mo. SOL 5/23/2015	Precinct: 45		
Date/Time CV Reported Fri, 11/29/2013 12:13 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 11/29/2013 12:13 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jose Barbosa	20536	917272	045 PCT
2. POM Garfield Reynolds	20880	937366	045 PCT
3. POM Frank Malafronte	02716	937009	045 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jose Barbosa	Discourtesy: PO Jose Barbosa spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Jose Barbosa	Abuse: PO Jose Barbosa stopped § 87(2)(b)	B . Substantiated
C . POM Jose Barbosa	Abuse: PO Jose Barbosa frisked § 87(2)(b)	C . Substantiated
D . POM Jose Barbosa	Abuse: PO Jose Barbosa searched § 87(2)(b)	D . Unsubstantiated
E . POM Jose Barbosa	Abuse: PO Jose Barbosa issued a summons to § 87(2)(b)	E . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On November 29, 2013, § 87(2)(b) filed this complaint with the CCRB in person (*encl. 9A-B*). On November 23, 2013, § 87(2)(b) was parked opposite of 196 Emerson Avenue in the Bronx. The following allegations resulted:

- Allegation A: Discourtesy- PO Jose Barbosa spoke discourteously to** § 87(2)(b)
- § 87(2)(g)
- Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.
- Allegation B: Abuse of Authority- PO Jose Barbosa stopped** § 87(2)(b)
- § 87(2)(g)
- Therefore, it is recommended that **Allegation B** be closed as **substantiated**.
- Allegation C: Abuse of Authority- PO Jose Barbosa frisked** § 87(2)(b)
- § 87(2)(g)
- Therefore, it is recommended that **Allegation C** be closed as **substantiated**.
- Allegation D: Abuse of Authority- PO Jose Barbosa searched** § 87(2)(b)
- § 87(2)(g)
- Therefore, it is recommended that **Allegation D** be closed as **unsubstantiated**.
- Allegation E: Abuse of Authority- PO Jose Barbosa issued a summons to** § 87(2)(b)
- § 87(2)(g)
- Therefore is recommended that **Allegation E** be closed as **substantiated**.
- § 87(4-b), § 87(2)(g)

As § 87(2)(b) expressed intent to file a lawsuit, this case was ineligible for mediation. § 87(2)

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- *At the time of the incident, § 87(2)(b) was a § 87(2)(b) Hispanic male. He § 87(2)(b) has black hair and dark brown eyes. § 87(2)(b)*

CCRB Testimony

On November 29, 2013, § 87(2)(b) was interviewed at the CCRB (encl.10A-G).

On November 23, 2013, at approximately 5:30 p.m., § 87(2)(b) and his friend, § 87(2)(b) were legally parked and seated inside of § 87(2)(b)'s vehicle, which was running, opposite of 196 Emerson Avenue in the Bronx. § 87(2)(b) and § 87(2)(b) were speaking in the vehicle. § 87(2)(b) did not consume any drugs or alcohol prior to the incident.

Twenty minutes after he had parked, a black unmarked Impala parked perpendicular to § 87(2)(b)'s car. Three officers identified via investigation as PO Jose Barbosa, PO Frank Malafronte, and PO Garfield Reynolds of the 45th Precinct were the occupants of the unmarked car. PO Barbosa was the operator, PO Malafronte was the front passenger and PO Reynolds was the rear passenger.

PO Malafronte exited and approached the driver's side window. PO Malafronte requested § 87(2)(b)'s driver's license and vehicle registration. § 87(2)(b) asked why and PO Malafronte responded that many "kids" smoke marijuana in the same exact area § 87(2)(b) was parked. § 87(2)(b) explained to PO Malafronte that he was a professional and he was not partaking in any illegal activity, such as consuming narcotics. PO Malafronte looked back at the black unmarked car and PO Barbosa asked what happened. PO Malafronte informed him that § 87(2)(b) was refusing to provide his driver's license. PO Barbosa and PO Reynolds then exited the unmarked car, and approached § 87(2)(b)'s vehicle.

PO Barbosa asked § 87(2)(b) "You are not going to give us your fucking license?" § 87(2)(b) stated that he was not because there was no reason to do so. § 87(2)(b) added that if there was an issue, PO Barbosa should call his field supervisor and he would provide his driver's license to that officer. PO Barbosa then responded that he was not going to call his "fucking" supervisor and requested that § 87(2)(b) provide him his "goddamn" license. § 87(2)(b) again, refused to comply.

PO Barbosa then opened § 87(2)(b)'s driver's side door, grabbed § 87(2)(b)'s left wrist, and started to pull him out of the vehicle. § 87(2)(b) tugged his wrist in the opposite direction, requested that PO Barbosa let go of his wrist, and finally told PO Barbosa to, "get the fuck off." § 87(2)(b) did not raise his voice, but spoke firmly. § 87(2)(b) then informed PO Barbosa that he would get his camera if PO Barbosa did not let go. § 87(2)(b) grabbed his phone, which was located in the center console, with his right hand, and PO Barbosa then released his grip. However, § 87(2)(b) did not use his phone because his phone battery was dying.

§ 87(2)(b) then exited his car on his own, and stood facing PO Barbosa with his back facing the driver's side entrance. PO Malafronte stood on § 87(2)(b)'s left next to the rear passenger door and PO Reynolds stood on § 87(2)(b)'s right towards the hood of his car.

Once outside of the vehicle, PO Barbosa asked § 87(2)(b) if he had any drugs or weapons in his vehicle. § 87(2)(b) responded that he did not. PO Barbosa then patted down § 87(2)(b)'s pants pockets, placed his hand inside of § 87(2)(b)'s right front pants pocket, and removed § 87(2)(b)'s keys. § 87(2)(b)'s car was on during the encounter and PO Barbosa asked him how his car was on when he had his keys in his pocket. § 87(2)(b) stated that the model of the car he owns allows the car to be on with a push of a button. PO Barbosa then returned § 87(2)(b)'s car keys.

§ 87(2)(b) recognized PO Barbosa from a previous encounter, and stated, "You're that loud ass cop that issued me a ticket for driving an expensive car when I was in my twenties," and PO Barbosa responded, "Yeah, I know who you are, and you're still a loud mouth fuck." § 87(2)(b) provided his license and registration to PO Barbosa. All three officers returned to their unmarked car and § 87(2)(b) reentered his car. Another unmarked, brown, car with other officers, whom were dressed in plainclothes, pulled up next to the first unmarked car.

All of the officers remained in their unmarked cars. § 87(2)(b) observed PO Barbosa writing in the driver's seat. § 87(2)(b)'s car was a foot away from the black unmarked car. PO Barbosa exited the black unmarked car and then issued § 87(2)(b) a summons for disorderly conduct fifteen minutes later. PO Barbosa told § 87(2)(b) to have a good evening, returned to the unmarked car and drove away. § 87(2)(b) then drove off.

§ 87(2)(b) added that § 87(2)(b) remained inside of the vehicle, seated in the front passenger seat. The officers did not acknowledge her nor did she interact with the officers. The officers from the brown unmarked vehicle never interacted with him.

Attempts to Contact § 87(2)(b)

§ 87(2)(b) provided the phone number and email address of § 87(2)(b). However, he did not know her mailing address. Between March 11, 2014 and June 9, 2014, five phone calls were placed to § 87(2)(b) and messages were left on each attempt. On April 8, 2014 and June 5, 2014, two emails were sent to § 87(2)(b)'s email address. A Lexis Nexis search was conducted for additional contact information for § 87(2)(b) but rendered negative results. Additionally, § 87(2)(b) was contacted numerous times by phone, postal mail, and e-mail following his interview, requesting that he reach out to § 87(2)(b) to have her contact the CCRB, which he agreed to do. However, as of the date of this report, § 87(2)(b) has failed to contact the CCRB.

NYPD Statements:

Subject Officer: PO JOSE BARBOSA

- *At the time of the incident PO Barbosa was a § 87(2)(b) hispanic male. He § 87(2)(b) has brown hair and brown eyes.*
- *On November 23, 2013, PO Barbosa worked from 3:00 p.m. to 11:35 p.m. He was assigned to Conditions. He was working with PO Garfield Reynolds and PO Frank Malafronte. He was dressed in uniform, and assigned to RMP# § 87(2)(b) (unmarked black Chevy Impala.) PO Barbosa was the operator, PO Malafronte was the front passenger, and PO Reynolds was the rear passenger.*

Memo Book:

At 5:30 p.m., a car stop was conducted opposite of 196 Emerson Avenue; the vehicle is a white 2001 Nissan Maxima four door Sedan, and was parked in an idle position. § 87(2)(b) and a white female were the occupants of the vehicle. § 87(2)(b) refused to identify himself, and stated that he did not need to provide anything. § 87(2)(b) was asked/ordered to identify himself, he refused. § 87(2)(b) was issued a criminal summons for refusing to comply with a lawful order. Sgt. Lombardo was notified and on scene (*encl. 11A-C*).

Summons # § 87(2)(b)

§ 87(2)(b) was stopped in a vehicle, when asked for identification, § 87(2)(b) stated in sum and substance that he did not have to produce a valid identification, and refused to give identification to the requesting officer, several times. As a result, § 87(2)(b) refused a lawful order given by the officer. § 87(2)(b)'s actions caused public alarm and annoyance (*encl. 12A*).

CCRB Testimony

On April 10, 2014, PO Jose Barbosa was interviewed at the CCRB (*encl. 13A-C*).

On November 23, 2013, at approximately 5:30 p.m., PO Barbosa, and his partners (PO Malafronte and PO Reynolds) drove onto Emerson Avenue in the Bronx. They observed the above car parked on the far-side of Emerson Avenue, opposite of 196 Emerson Avenue. The car was still running and there were two occupants inside, § 87(2)(b) (driver), and a white female (front passenger), identified via the investigation as § 87(2)(b). § 87(2)(b) was seated in a reclined position.

Emerson Avenue is an area known for drinking, smoking, and sexual activity inside of vehicles. PO Barbosa had arrested and summonsed several individuals for the above violations prior to this incident. As PO Barbosa turned onto Emerson Avenue, he immediately observed § 87(2)(b)'s car, drove towards the car, and without any previous conversation, he and his partners exited the unmarked car. PO Malafronte approached the driver's side of § 87(2)(b)'s car and PO Barbosa approached the passenger side of the car. PO Reynolds stood behind PO Malafronte at the driver's side.

PO Malafronte requested to see § 87(2)(b)'s identification. § 87(2)(b) asked why, and stated that he did not need to provide anything, because he did nothing wrong. PO Malafronte asked § 87(2)(b) why he had parked in the area, if he lived in the area, and only wanted to verify if he had a license, twice. § 87(2)(b) stated that he did not live in the area and refused to provide his license.

PO Barbosa moved from the passenger side to the driver's side and spoke with § 87(2)(b). PO Barbosa informed § 87(2)(b) that they just wanted to check that nothing was happening and requested to see § 87(2)(b)'s license approximately three times. § 87(2)(b) refused each time.

PO Barbosa twice instructed § 87(2)(b) to step out of his car. The first time, § 87(2)(b) told PO Barbosa that he was over six feet tall and that PO Barbosa was not going to get him out of his car. The second time, PO Barbosa opened the driver's side door, and as § 87(2)(b) was stepping out, asked him if he had sharp items or weapons in his car or on him. PO Barbosa did not grab or attempt to pull § 87(2)(b) out of his car. When § 87(2)(b) was fully outside,

PO Barbosa patted § 87(2)(b) down from top to bottom, including his waist. He did not search § 87(2)(b)

§ 87(2)(b) then provided his license to PO Barbosa, and PO Barbosa returned to the unmarked car. PO Barbosa recalled that § 87(2)(b) stated that he had recognized PO Barbosa from a previous incident, but could not recall the context. PO Barbosa did not recognize § 87(2)(b)

PO Barbosa then called his supervisor, identified via investigation as Sgt. Anthony Lombardo, because he had a confrontation and wanted to witness the incident. PO Barbosa then ran a check on § 87(2)(b) and proceeded to write a criminal summons for § 87(2)(b) for failure to comply with a lawful order. Sgt. Lombardo arrived on scene, in another black Chevy Impala and he informed him of what occurred.

§ 87(2)(b) remained outside of his vehicle and was having a conversation with the female passenger, but PO Barbosa could not hear them, because he was focused on running a check and writing the summons for § 87(2)(b). PO Barbosa then issued § 87(2)(b) the summons.

PO Barbosa stated that § 87(2)(b) was non-compliant and confrontational throughout the incident. § 87(2)(b) would raise his voice at points, but he did not move or do anything else notable. The female passenger was quiet and PO Barbosa was not sure if he or his partners interacted with her or if she addressed either of them.

PO Barbosa denied using any profanity during the incident. PO Barbosa stated that he had requested that § 87(2)(b) step out of his vehicle, because he did not obey a lawful order, and was not cooperating with the officers. PO Barbosa wanted to ensure his safety and frisked § 87(2)(b)

Subject Officer: PO GARFIELD REYNOLDS

- *At the time of the incident, PO Reynolds was a § 87(2)(b) black male. He § 87(2)(b) has black hair and brown eyes.*
- *On November 23, 2013, PO Reynolds worked the same tour and assignment as PO Barbosa and PO Malafronte. In their assigned car, he was the front passenger and designated recorder.*

Memo Book

PO Reynolds does not have any entries in his memo book regarding this incident (*encl. 14A-B*).

CCRB Testimony

On April 11, 2014, PO Garfield Reynolds was interviewed at the CCRB (*encl.15A-B*).

PO Reynolds corroborated PO Barbosa's statement regarding their observations. PO Reynolds also corroborated that PO Malafronte approached the driver's side first, and after § 87(2)(b) refused to provide his identification, several times, PO Barbosa took over.

PO Barbosa requested § 87(2)(b)'s identification approximately five to six times. § 87(2)(b) refused to provide his identification, and with each refusal got louder and louder. PO Reynolds heard § 87(2)(b) state that he is 6'6" tall and weighed 240 pounds and that PO

Barbosa needed to drag him out of the car. At that moment, PO Reynolds called his patrol supervisor on his cell phone.

PO Reynolds corroborated that his supervisor arrived on scene in another black Chevy Impala, but stated that when he arrived PO Barbosa instructed § 87(2)(b) to step out of his car, and § 87(2)(b) complied, without incident. PO Barbosa informed § 87(2)(b) that he was going to frisk him to ensure that he did not have any weapons, and for his protection. § 87(2)(b) consented to the frisk, but PO Barbosa did not search him.

§ 87(2)(b) then provided his license to PO Barbosa. PO Barbosa then went to the unmarked car, ran a check on the computer, and issued him a summons for disorderly conduct, and returned § 87(2)(b)'s identification when he provided him the written summons.

PO Barbosa did not use any profanity throughout the incident. § 87(2)(b) did not recognize PO Barbosa nor did PO Barbosa recognize § 87(2)(b). PO Reynolds stated that Emerson Avenue is a quiet area, and usually children play in the vicinity. However, he could not recall if there were additional individuals present during the incident besides the aforementioned parties.

Subject Officer: PO FRANK MALAFRONTTE

- *At the time of the incident PO Malafronte was a § 87(2)(b) white male. He § 87(2)(b) has brown hair and eyes.*
- *On November 23, 2013, PO Malafronte worked from 4:00 p.m. to 12:35 a.m. He worked the same assignment as PO Barbosa and PO Reynolds. In the unmarked car, he was the front passenger.*

Memo Book

PO Malafronte had no entries in his memo book regarding this incident (*encl. 16A-B*).

CCRB Testimony

On April 18, 2014, PO Frank Malafronte was interviewed at the CCRB (*17A-B*).

PO Malafronte corroborated PO Barbosa's statement regarding the observations made, that he was the officer who had initiated the stop, requested § 87(2)(b)'s identification several times, and each time § 87(2)(b) refused, and that PO Barbosa took over. As PO Barbosa spoke with § 87(2)(b) PO Malafronte walked back to the unmarked car.

PO Malafronte corroborated that PO Barbosa requested § 87(2)(b)'s identification several times and § 87(2)(b) refused on each request. PO Malafronte recalled that § 87(2)(b) exited his vehicle, but could not recall if PO Barbosa instructed him to do so, or if he was physically removed. PO Malafronte could not recall if PO Barbosa frisked or searched § 87(2)(b).

PO Malafronte corroborated PO Reynolds with the arrival of their supervisor, and that PO Reynolds contacted the supervisor and that PO Barbosa issued § 87(2)(b) a summons. He described § 87(2)(b) as non-compliant throughout much of the interaction. The female passenger was quiet during the entire incident.

PO Malafronte could not recall if PO Barbosa used any profanity during the incident, if he grabbed and attempted to pull § 87(2)(b) out of the vehicle, or if he frisked and/or searched

§ 87(2)(b) However, PO Malafronte recalled § 87(2)(b) state that he recognized PO Barbosa, but could not recall the specifics.

PO Malafronte informed the undersigned investigator that he had trouble recalling the incident, but was reminded of the incident by PO Reynolds and PO Barbosa, during a conversation he had had with them prior to his interview, and due to the CCRB interview notification he had received.

NYPD Documents

Stop, Question, and Frisk Log

- The computerized Stop, Question, and Frisk report/log noted negative results for any reports for § 87(2)(b) and for the date of November 23, 2013 (*encl. 28C*).
- The handwritten Stop, Question, and Frisk index had no entries for § 87(2)(b) or any entries written for PO Barbosa, PO Malafronte, and PO Reynolds for the date of November 23, 2013 (*encl. 21A*).

Summons for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Status of Civil Proceedings

- § 87(2)(b) has not filed a notice of claim with the City of New York as of June 18, 2014 (*encl. 24A*), approximately four months after the expiration of the 90-day filing deadline.

Civilians Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilians CCRB History

- § 87(2)(b) has filed the following CCRB complaint (*encl. 7A*):
 - § 87(2)(b) [REDACTED]
[REDACTED]

Subject Officers CCRB History

- PO Barbosa has been a member of the service for seventeen years and there are no substantiated CCRB allegations against him (*encl. 4A*).
- PO Reynolds has been a member of the service for nine years and there are no substantiated CCRB allegations against him; this is PO Reynolds first CCRB complaint (*encl. 5A*).
- PO Malafronte has been a member of the service for nine years and there are no substantiated CCRB allegations against him; this is PO Malafronte's first CCRB complaint (*encl. 6A*).

Conclusion

Identification of Subject Officers

§ 87(2)(b) identified PO Barbosa by name, and stated that he was the officer that spoke discourteously to him, frisked, searched him, and issued him the summons. PO Barbosa acknowledged that he stopped, frisked, and issued a summons to § 87(2)(b) § 87(2)(g)
[REDACTED]

Investigative Findings and Recommendations

Allegation A: Discourtesy- PO Jose Barbosa spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that after he refused to provide his identification to PO Malafronte, PO Barbosa asked him if he was not going to provide his “fucking” license. § 87(2)(b) requested that PO Barbosa call his field supervisor and PO Barbosa responded that he was not going to call his “fucking” supervisor. Lastly, § 87(2)(b) recognized PO Barbosa from a previous unrelated incident and stated to PO Barbosa that he was the loud “ass” cop he had an encounter with in his twenties, to which PO Barbosa responded that § 87(2)(b) is still a loud mouth “fuck.”

As previously mentioned, the only civilian witness, § 87(2)(b) was unavailable to the investigation despite exhausting all attempts to contact her.

Although PO Barbosa acknowledged calling his supervisor and having a previous interaction with § 87(2)(b) thus largely corroborating the context of the alleged discourtesies, PO Barbosa denied that he used any profanity during the incident. PO Reynolds similarly denied that PO Barbosa used profanity. PO Malafronte could not recall if PO Barbosa used any profanity.

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B: Abuse of Authority- PO Jose Barbosa stopped § 87(2)(b)

§ 87(2)(b) stated that he was legally parked opposite of 196 Emerson Avenue in the Bronx, which none of the officers disputed. Moreover, none of the officers mentioned § 87(2)(b)'s vehicle being illegally parked at any point during their interaction with him. § 87(2)(g)

At the time of the incident, § 87(2)(b) was seated in the driver's seat, and § 87(2)(b) was seated in the passenger's seat. § 87(2)(b)'s vehicle was in an idle position. PO Barbosa, PO Malafronte, and PO Reynolds subsequently drove toward § 87(2)(b)'s car and observed him and § 87(2)(b) seated inside of the vehicle. The officers added that § 87(2)(b) was seated in a “slightly reclined” position; which § 87(2)(b) made no mention of. In addition, the officers added that the area in which § 87(2)(b) was parked was an area prone to drinking, smoking, and sexual activity inside vehicles.

Based on the above observation and history of the location, all three officers approached § 87(2)(b)'s vehicle. § 87(2)(b) and § 87(2)(b) remained seated in the same aforementioned positions, and did not make any movements.

Upon approach, PO Malafronte repeatedly requested § 87(2)(b)'s driver's license, but § 87(2)(b) refused to comply. After this, § 87(2)(b) was ordered out of his vehicle, which he also refused. PO Barbosa then opened § 87(2)(b)'s driver's side door and either physically removed or guided him out of the vehicle.

When a police officer has reasonable suspicion that an individual has committed, is committing, or is about to commit a felony or misdemeanor, a forcible stop and/or detention of that individual is authorized. *People v. DeBour*, 40N.Y.2d 210 (1976) (*encl. 1A-K*). Innocuous behavior, or behavior susceptible of an innocent interpretation, generates neither founded nor reasonable suspicion. *People v. Hampton*, 100A.D.2d 466 (1994) (*encl. 2D-F*). Likewise, an individual's mere presence in a high crime area fails to generate either founded or reasonable suspicion. See *Hampton*.

§ 87(2)(g)

Emerson Avenue, as described by the officers, is an area known for drug, alcoholic, and sexual activities in vehicles. As the officers approached § 87(2)(b)'s vehicle, they noticed him slightly reclined in his car seat. § 87(2)(b) and § 87(2)(b) made no movements to change positions or disguise any potential illegal actions and/or activities. § 87(2)(g)

§ 87(2)(g)

PO Malafronte asked § 87(2)(b) to produce identification. When § 87(2)(b) refused, PO Barbosa intervened and requested § 87(2)(b)'s identification numerous times. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **substantiated**.

Allegation C: Abuse of Authority- PO Jose Barbosa frisked § 87(2)(b)

It is undisputed that PO Barbosa frisked § 87(2)(b) and issued him a summons for disorderly conduct, sub-section six- failure to comply with a lawful order to disperse. He did so based on § 87(2)(b)'s repeated refusal to provide identification and his confrontational nature during the encounter.

People v. Hazelwood 104 Misc. 2d 1121; 429 N.Y. S.2d 1012 (1980) (*encl. 2A-C*) states that an officer who has probable cause to detain an individual and elects to issue a universal summons for an offense other than a traffic infraction retains the right to frisk the individual solely on the basis that he has elected to issue said summons. Correspondingly, in *People v. DeBour*, 40 N.Y.2d 210 (1976) (*encl. 1A-K*) an officer is authorized to frisk an individual, if the officer reasonably suspects they are in danger of physical injury by virtue of the individual being armed.

As mentioned above, the summons issued to § 87(2)(b) was for disorderly conduct, failure to comply with a lawful order to disperse. § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation C** be closed as **substantiated**.

Allegation D: Abuse of Authority- PO Jose Barbosa searched § 87(2)(b)

It is undisputed that § 87(2)(b) was frisked by PO Barbosa, § 87(2)(g)

§ 87(2)(b) alleged that PO Barbosa patted down his pants pocket, placed his hand inside of his front right pants pocket and removed his car keys. PO Barbosa stated that he patted down § 87(2)(b) from top to bottom, including his waist, but did not search § 87(2)(b) PO Reynolds denied that PO Barbosa searched § 87(2)(b) and PO Malafronte could not recall if § 87(2)(b) was searched, at all. In addition, no stop, question, and frisk report was prepared to clarify PO Barbosa's actions. Finally, as mentioned before, the investigation was unable to make contact with § 87(2)(b) to obtain a statement regarding what she witnessed.

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E: Abuse of Authority- PO Jose Barbosa issued a summons to § 87(2)(b)

As discussed above, it is undisputed that PO Barbosa issued § 87(2)(b) a summons for disorderly conduct, sub-section six- failure to comply with a lawful order to disperse. § 87(2)(b) [§ 86(1)(2)&(4)] § 87(2)(a)

§ 87(2)(a) 160.50

The narrative section of the summons clearly misinterprets the statute for which § 87(2)(b) was cited. It describes the "lawful order" as § 87(2)(b)'s refusal to produce identification upon request, thereby ignoring the requirement in sub-section six that the lawful order be to disperse, which § 87(2)(b) was never ordered to do. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Aside from sub-section six, the remaining prongs of the disorderly conduct statute (encl. 2G) are as follows: engagement in fighting, violent, tumultuous, or threatening behavior; making unreasonable noise; use of obscenity in a public place; disturbing the lawful assembly of others;

obstructing vehicular or pedestrian traffic; and creating a hazardous condition which serves no legitimate purpose. To be considered disorderly conduct, any of the above must be done with intent to cause public inconvenience, annoyance or alarm, or recklessly create a risk thereof.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **substantiated**.

§ 87(4-b), § 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date